

**UNITED STATES INTERNATIONAL TRADE COMMISSION
WASHINGTON, D.C.**

**Before the Honorable Doris Johnson Hines
Administrative Law Judge**

In the Matter of:

CERTAIN WEARABLE DEVICES

Investigation No. 337-TA-1478

**COMPLAINANTS' REPLY IN SUPPORT OF THEIR MOTION FOR SUMMARY
DETERMINATION REGARDING INFRINGEMENT & DOMESTIC INDUSTRY
TECHNICAL PRONG FOR U.S. PATENT NOS. 10,945,677 AND 10,231,675**

(Motion Docket No. 1478-009)

TABLE OF CONTENTS

	Page
I. INTRODUCTION	1
II. OURA’S RECASTING OF ITS PRACTICING THE PRIOR ART DEFENSE AS A CREDIBILITY ISSUE IS LEGALLY AND FACTUALLY BASELESS	2
III. OURA’S UNSUPPORTED AND UNDISCLOSED ATTORNEY ARGUMENTS FAIL TO CONTRADICT SAMSUNG’S SHOWING OF INFRINGEMENT	6
IV. IF RING 5 AND [REDACTED] ARE IN THIS CASE, OURA CONCEDES INFRINGEMENT.....	7
V. OURA INFRINGES METHOD CLAIMS 13 AND 15 OF THE ’675 PATENT	9
VI. CONCLUSION.....	10

TABLE OF AUTHORITIES

	Page(s)
 <u>CASES</u>	
<i>01 Communique Lab., Inc. v. Citrix Sys., Inc.</i> , 889 F.3d 735 (Fed. Cir. 2018).....	5
<i>Amgen, Inc. v. Hoechst Marion Roussel, Inc.</i> , 126 F. Supp. 2d 69 (D. Mass. 2001), vacated in part on other grounds, 314 F.3d 1313 (Fed. Cir. 2003)	9
<i>Callicrate v. Wadsworth Mfg., Inc.</i> , 427 F.3d 1361 (Fed. Cir. 2005).....	9
<i>Certain Blood Cholesterol Testing Strips & Associated Sys. Containing the Same</i> , Inv. No. 337-TA-1116, Comm. Op. (May 1, 2020).....	9
<i>Certain Crafting Machs. & Components Thereof</i> , Inv. No. 337-TA-1426, Init. Det. (Jan. 21, 2026)	8
<i>Certain Human Milk Oligosaccharides & Methods of Producing the Same</i> , Inv. No. 337-TA-1120, Comm. Op. (June 8, 2020).....	9
<i>Certain Silicon-on-Insulator Wafers</i> , Inv. No. 337-TA-966, Order No. 15 (May 9, 2026)	6
<i>Certain Smart Wearable Devices, Sys., & Components Thereof</i> , Inv. No. 337-TA-1398, Comm. Op. (Sept. 5, 2025).....	9
<i>Certain Smart Wearable Devices, Sys., & Components Thereof</i> , Inv. No. 337-TA-1468, Order No. 22 (July 1, 2026).....	9
<i>Certain Smart Wearable Devices, Sys., & Components Thereof</i> , Inv. No. 337-TA-1468, Order No. 23 (July 6, 2026).....	6
<i>Est. of Thomas v. Fayette Cnty.</i> , 194 F. Supp. 3d 358 (W.D. Pa. 2016).....	4
<i>Evans Cooling Sys., Inc. v. Gen. Motors Corp.</i> , 125 F.3d 1448 (Fed. Cir. 1997).....	5
<i>Sartor v. Ark. Nat. Gas Corp.</i> , 321 U.S. 620 (1944).....	4
<i>Suprema, Inc. v. Int’l Trade Comm’n</i> , 796 F.3d 1338 (Fed. Cir. 2015).....	10

TABLE OF AUTHORITIES
(continued)

	Page(s)
<i>Tate Access Floors, Inc. v. Interface Architectural Res., Inc.</i> , 279 F.3d 1357 (Fed. Cir. 2002).....	2
<i>Vanda Pharms. Inc. v. W.-Ward Pharms. Int’l Ltd.</i> , 887 F.3d 1117 (Fed. Cir. 2018).....	10
<i>Vanmoor v. Wal-Mart Stores, Inc.</i> , 201 F.3d 1363 (Fed. Cir. 2000).....	5
<i>Wasica Fin. GmbH v. Cont’l Auto. Sys., Inc.</i> , 853 F.3d 1272 (Fed. Cir. 2017).....	7

[REDACTED]

I. INTRODUCTION

Samsung’s Motion for Summary Determination (“MSD”) should be granted because Oura offers no real rebuttal to Samsung’s showing that the Asserted Claims of the ’677 Patent (Claims 1-3, 9) and ’675 Patent (Claims 13, 15) are infringed and satisfy the technical domestic industry (“TDI”) requirement.¹

As an initial matter, summary determination is warranted on TDI for Claim 9 of the ’677 Patent and Claims 13 and 15 of the ’675 Patent because Oura does not respond whatsoever and, instead, expressly concedes the issue. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] *01 Communique* is inapplicable—that case relates to the use of a patentee’s claim interpretations to support prior art *invalidity* defenses. Oura improperly argues for *noninfringement*; moreover, Oura already disavowed any such claim construction disputes in the last case management conference. [REDACTED]

[REDACTED]

[REDACTED]. This is precisely a “practicing the prior art” defense.

Beyond Oura’s repackaged “practicing the prior art” defense, Oura offers no arguments regarding infringement of Claim 9 of the ’677 Patent and summary determination should be granted on that issue. [REDACTED]

[REDACTED]

Oura’s remaining arguments are meritless. *First*, in disputing Samsung’s infringement positions for Claim 1 of the ’677 Patent and Claim 13 the ’675 Patent, Oura relies on improper and unsupported attorney arguments, wholly absent from either its expert reports or its noninfringement contentions. *Second*, infringement by Ring 5 and [REDACTED] is either moot, if those products are excluded from adjudication,² or else infringement should be found based on the unambiguous testimony of Oura’s own expert that [REDACTED] Ring 4 for purposes of infringement. *Third*, its argument that method Claims 13 and 15 of the ’675 Patent cannot be directly infringed is undermined by Oura’s own admitted domestic use and testing of imported accused products.

II. OURA’S RECASTING OF ITS PRACTICING THE PRIOR ART DEFENSE AS A CREDIBILITY ISSUE IS LEGALLY AND FACTUALLY BASELESS

While Oura repeatedly asserts it is not engaging in an improper “practicing the prior art” infringement defense, its opposition tells a different story. The vast majority of Oura’s opposition does not “compar[e the claims] to the accused device[s]” to argue noninfringement. *Tate Access Floors, Inc. v. Interface Architectural Res., Inc.*, 279 F.3d 1357, 1366 (Fed. Cir. 2002); [REDACTED]

[REDACTED]

² It is Oura’s burden to show that the Ring 5 and [REDACTED] should be adjudicated; Samsung intends to oppose any attempt by Oura to obtain adjudication of Ring 5 and [REDACTED]

[REDACTED]. [REDACTED].
[REDACTED]. Moreover, Oura’s arguments fail, because:
(1) despite asserting that there are “irreconcilable contradictions” in Dr. Welch’s opinions on infringement versus invalidity, Oura fails to identify any actual contradiction; instead, Oura repeatedly presents its own expert’s comparison of Ring 1 and Ring 4; and (2) contrary to Oura’s assertions, *01 Communique* and its progeny do not support any ***noninfringement*** defense by virtue of alleged similarities between the accused products and prior art.

First, although Oura accuses Dr. Welch of inconsistent opinions, a criticism of Dr. Welch’s actual opinions is notably absent from Oura’s opposition; [REDACTED]

[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED] In short, Oura opposes summary determination of infringement because Ring 1 and Ring 4 are the same—precisely a “practicing the prior art” defense irrelevant to this Investigation (or any infringement analysis for that matter).

Nor are Dr. Welch’s actual opinions inconsistent because Ring 1 and the accused Ring 4 are not the same—they are multiple generations and years apart. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] The Ring 1 and Ring 4 are so fundamentally different that, even if legally relevant, there would be no “irreconcilable differences” that would afford Oura a basis to continue its practicing the prior art defense.

Even if Dr. Welch’s opinions were inconsistent (they are not), Oura still provides no argument to dispute *infringement*, because the facts supporting Oura’s infringement are undisputed. Neither of Oura’s two cited cases, *Estate of Thomas v. Fayette County*, 194 F. Supp. 3d 358 (W.D. Pa. 2016), nor *Sartor v. Arkansas Natural Gas Corp.*, 321 U.S. 620 (1944), prevents summary judgment from being granted based on unrebutted expert testimony. *Thomas* requires that a party opposing summary judgment “com[e] forward with specific facts” to oppose unrebutted expert testimony and show a genuine triable dispute. 194 F. Supp. 3d at 368. *Sartor* found sufficient doubt to not accept unrebutted testimony about a specific fact—the market price of natural gas—where all of the experts were either officers or employees of the Plaintiff. 321 U.S. at 626. Here, the key *facts* demonstrating infringement are undisputed—Oura does not dispute Samsung’s comparison of the Ring 4 *to the claim language* and casts no doubt as to the facts showing infringement.

Likewise, the *01 Communique* line of cases Oura cites is inapplicable because it does not afford any basis for Oura to dispute **infringement**. In *01 Communique Laboratory, Inc. v. Citrix Systems, Inc.*, the Federal Circuit confirmed that a “practicing the prior art” defense is improper as a matter of law: “An accused infringer cannot defeat a claim of literal infringement or establish invalidity merely by pointing to similarities between an accused product and the prior art.”⁴ 889 F.3d at 742-43. Yet that is exactly what Oura is doing here.

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] Oura, thus, does

exactly what *01 Communique* forbids: attempting to “defeat a claim of literal infringement . . . by pointing to similarities between an accused product [Ring 4] and the prior art [Ring 1].”⁵ Oura’s reliance on these comparisons are legally flawed and do not justify denying Samsung’s MSD.

⁴ In *01 Communique*, the accused infringer did **not** offer any practicing the prior art noninfringement defense, because it “never argued that its accused product did not infringe the asserted claims merely because [the accused product] shared the same architecture as the prior art [] product.” 889 F.3d 735, 741 (Fed. Cir. 2018). Instead, the accused infringer was asserting **invalidity**, and limited its comparisons to requiring consistent **claim constructions**. *Id.* at 742.

⁵ The related *Vanmoor* and *Evans* cases, cited by Oura and quoted by *01 Communique*, are instances where the defendants “‘conced[ed] infringement for purposes of the summary judgment’” of invalidity and argued the alleged inconsistencies in those defendant’s claim construction positions. *Vanmoor v. Wal-Mart Stores, Inc.*, 201 F.3d 1363, 1366 (Fed. Cir. 2000) (quoting *Evans Cooling Sys., Inc. v. Gen. Motors Corp.*, 125 F.3d 1448, 1451 (Fed. Cir. 1997)). These cases only confirm that Oura’s arguments give it no basis to dispute infringement.

III. OURA'S UNSUPPORTED AND UNDISCLOSED ATTORNEY ARGUMENTS FAIL TO CONTRADICT SAMSUNG'S SHOWING OF INFRINGEMENT

Apart from its recast practicing the prior art arguments, Oura offers no basis for finding noninfringement of the '677 Patent, Claim 9, and summary determination should be granted on that issue. [REDACTED]

[REDACTED]

For the remaining asserted independent claims, Oura purports to craft a noninfringement argument based on limitations [1-g] of the '677 and [13-f] of the '675 Patent. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

Oura has not previously advanced this argument—not in its contentions or in its rebuttal expert rebuttal report. Indeed, Oura's new theory is nothing but unsupported attorney argument cobbled together from an excerpt of Oura's expert's report comparing the Ring 4 to the Ring 1. The expert nowhere makes the argument Oura now advances but instead is just comparing the two versions of the Ring to show alleged similarities. The argument should, thus, be stricken and ignored. *See, e.g., Certain Smart Wearable Devices, Sys., & Components*, Inv. No. 337-TA-1468, Order No. 23, at 4-7 (July 6, 2026) (EDIS Doc. ID 887092) (excluding new bond theories not disclosed in Oura's contentions); *Certain Silicon-on-Insulator Wafers*, Inv. No. 337-TA-966, Order No. 15 (May 9, 2026) (EDIS Doc. ID 594088) (striking evidence and contentions raised for

the first time in response to a summary determination motion).⁶ Absent this new and unsupported argument, Samsung’s evidence stands unrebutted and demonstrates infringement.

Even if Oura’s untimely argument is considered, Oura’s argument fails [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

IV. IF RING 5 AND [REDACTED] ARE IN THIS CASE, OURA CONCEDES INFRINGEMENT

For all the reasons set forth in Samsung’s Opposition to Oura’s Motion for Summary Determination (EDIS Doc. ID 889193) and Samsung’s Opposition to Oura’s Motion to Strike (EDIS Doc. ID 889200), neither Ring 5 nor [REDACTED] should be adjudicated. During discovery, Oura failed to notify Samsung that the Ring 5 and [REDACTED] would be redesigns or alternative products and failed to even allege—let alone demonstrate—that the *Oligosaccharides* factors are met. *See, e.g.*, Samsung’s Opposition to Oura’s Motion for Summary Determination (EDIS Doc. ID 889193) at 2-5. [REDACTED]

[REDACTED]

⁶ Further, Oura’s new positions are based entirely on “[a]ttorney argument[, which] is no substitute for evidence” and “cannot rebut record evidence” or raise a genuine dispute. *Wasica Fin. GmbH v. Cont’l Auto. Sys., Inc.*, 853 F.3d 1272, 1284-85 (Fed. Cir. 2017).

But even if Ring 5 and [REDACTED] are adjudicated, there is no dispute that Ring 5 and [REDACTED] infringe for the same reasons as Ring 4. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

None of Oura’s cited authorities support noninfringement where the functionality of the asserted redesign products are admitted to be [REDACTED]—instead, those cases each involved affirmative evidence that the redesigns were noninfringing. *Certain Crafting Machs. & Components Thereof*, Inv. No. 337-TA-1426, Init. Det. at 40 (Jan. 21, 2026) (EDIS Doc. ID 870991) (“[Respondent] presents undisputed evidence that the redesigned products do not infringe the asserted patents.”); *Certain Human Milk Oligosaccharides & Methods of Producing the Same*,

Inv. No. 337-TA-1120, Comm. Op. at 23-24 (June 8, 2020) (EDIS Doc. ID 712205) (listing extensive testimony showing that the redesigned bacterial strain lacked key gene necessary for infringement). [REDACTED]

[REDACTED] “[A]dmissions on the record constitute evidence upon which reliance may be placed at the summary judgment stage.” *Amgen, Inc. v. Hoechst Marion Roussel, Inc.*, 126 F. Supp. 2d 69, 95 (D. Mass. 2001), *vacated in part on other grounds*, 314 F.3d 1313 (Fed. Cir. 2003); *cf. Callicrate v. Wadsworth Mfg., Inc.*, 427 F.3d 1361, 1372 (Fed. Cir. 2005) (reversing jury verdict of non-infringement where the defendant admitted that the accused devices included all claim elements). Dr. Mortazavi’s affirmative admissions are more than sufficient to demonstrate that Ring 5 and [REDACTED] also infringe.

V. OURA INFRINGES METHOD CLAIMS 13 AND 15 OF THE ’675 PATENT

Samsung’s motion establishes that, when worn in the ordinary course, the accused products perform each step of method Claims 13 and 15 of the ’675 Patent. Mot. at 15-18. Nonetheless, Oura attempts to manufacture a dispute, arguing that Samsung failed to carry its burden to show infringement because these claims are method claims lacking proof of actual use. This is a significantly different position from that taken by Oura in the 1468 investigations, where it based its economic domestic industry arguments on its activities with the accused products in the United States. *See Certain Smart Wearable Devices, Sys., & Components Thereof*, Inv. No. 337-TA-1468, Order No. 22, Initial Determination Granting Summary Determination (July 1, 2026) (EDIS Doc. ID 886733); *see also Certain Smart Wearable Devices, Sys., & Components Thereof*, Inv. No. 337-TA-1398, Comm. Op. at 4-6 (Sept. 5, 2025) (EDIS Doc. ID 861286). Oura’s use and testing, among other things, evidences Oura’s direct infringement. *See, e.g., Certain Blood Cholesterol Testing Strips & Associated Sys. Containing the Same*, Inv. No. 337-TA-1116, Comm. Op. at 17-18 (May 1, 2020) (EDIS Doc. ID 709361) (“[respondents’] use of the Accused Products

satisfies [the asserted method claims]” and “thus, [respondent] directly infringes [the asserted method claims]”).⁷ Thus, there is no genuine dispute that the accused products infringe method Claims 13 and 15 of the ’675 Patent.

VI. CONCLUSION

Accordingly, the ALJ should grant Samsung’s Motion and find that Claims 1-3 and 9 of the ’677 Patent and Claims 13 and 15 of the ’675 Patent are infringed. The ALJ should also find that Claims 9 of the ’677 Patent and Claims 13 and 15 of the ’675 Patent satisfy the TDI requirement, as Oura does not dispute TDI.

“[I]nstruct[ing] users to perform the patented method is sufficient to provide evidence of” “intent to induce infringement.” *Vanda Pharms. Inc. v. W.-Ward Pharms. Int’l Ltd.*, 887 F.3d 1117, 1132 (Fed. Cir. 2018); *Suprema, Inc. v. Int’l Trade Comm’n*, 796 F.3d 1338, 1348-52 (Fed. Cir. 2015) (“[A] violation of Section 337 may arise from an act of induced infringement.”).

Dated: July 28, 2026

Respectfully submitted,

/s/ D. Sean Trainor

D. Sean Trainor

Renia Zervos

Khanh Leon

Jacob Boesch

O'MELVENY & MYERS

1625 Eye Street

Washington, D.C. 20006

Telephone: (202) 383-5300

Ryan K. Yagura

Ben Haber

Nancy Schroeder

Gregory Sefian

Grace McFee

Ohona Chowdhury

O'MELVENY & MYERS LLP

400 South Hope Street

Los Angeles, CA 90071

Telephone: (213) 430-6000

Mark Liang

Bill Trac

Rui Li

Sorin Zaharia

Eric T. Ong

O'MELVENY & MYERS LLP

Two Embarcadero Center, 28th Floor

San Francisco, CA 94111

Telephone: (415) 984-8700

Marc Pensabene

Laura Gore

Caitlin P. Hogan

Nate Legum

Joanne Bae

O'MELVENY & MYERS LLP

1301 Avenue of the Americas, 17th Floor

New York, NY 10019

Telephone: (212) 326-2000

John Kappos

Cason Cole

Frances Mackay

O'MELVENY & MYERS LLP
2801 North Harwood Street, Suite 1600
Dallas, TX 75201
Telephone: (972) 360-1900

Email: OMM-Samsung-Oura@omm.com

*Counsel for Complainants Samsung
Electronics Co., Ltd. and Samsung
Electronics America, Inc.*

CERTIFICATE OF SERVICE

Investigation No. 337-TA-1478

The undersigned certifies that on July 28, 2026, true and correct copies of the foregoing document were served upon the following parties as indicated below:

The Honorable Lisa R. Barton Secretary to the Commission U.S. INTERNATIONAL TRADE COMMISSION 500 E Street, SW, Room 112 Washington, DC 20436	☐ Via Hand Delivery ☐ Via Overnight Delivery ☐ Via First Class Mail ☒ Via Electronic Filing (EDIS) ☐ Via Electronic Mail
The Honorable Doris Johnson Hines Administrative Law Judge U.S. INTERNATIONAL TRADE COMMISSION 500 E Street, S.W. Washington, D.C. 20436 Email: JohnsonHines1478@usitc.gov	☐ Via Hand Delivery ☐ Via Overnight Delivery ☐ Via First Class Mail ☒ Via Electronic Filing (EDIS) ☒ Via Electronic Mail
<i>Counsel for Respondents Ouraring Inc. and Oura Health Oy</i> Jasjit S. Vidwan James A. Fussell, III Saqib J. Siddiqui Bryan C. Nese MAYER BROWN LLP 1999 K Street NW Washington, DC 20006 Tel: 202-263-5282 Robert G. Pluta Nicholas H. Ciulla MAYER BROWN LLP 71 S. Wacker Drive Chicago, IL 60606 Tel: 312-782-0600 Email: Oura-ITC@mayerbrown.com	☐ Via Hand Delivery ☐ Via Overnight Delivery ☐ Via First Class Mail ☐ Via Electronic Filing (EDIS) ☒ Via Electronic Mail

/s/ Brian A. Treggs

Brian A. Treggs
Senior IPT Specialist
O'Melveny & Myers LLP
400 South Hope Street
Los Angeles, CA 90071

CERTIFICATE OF SERVICE

Investigation No. 337-TA-1478

The undersigned certifies that on August 5, 2026, true and correct copies of the foregoing document were served upon the following parties as indicated below:

The Honorable Lisa R. Barton Secretary to the Commission U.S. INTERNATIONAL TRADE COMMISSION 500 E Street, SW, Room 112 Washington, DC 20436	☐ Via Hand Delivery ☐ Via Overnight Delivery ☐ Via First Class Mail ☒ Via Electronic Filing (EDIS) ☐ Via Electronic Mail
The Honorable Doris Johnson Hines Administrative Law Judge U.S. INTERNATIONAL TRADE COMMISSION 500 E Street, S.W. Washington, D.C. 20436 Email: JohnsonHines1478@usitc.gov	☐ Via Hand Delivery ☐ Via Overnight Delivery ☐ Via First Class Mail ☒ Via Electronic Filing (EDIS) ☒ Via Electronic Mail
<i>Counsel for Respondents Ouraring Inc. and Oura Health Oy</i> Jasjit S. Vidwan James A. Fussell, III Saqib J. Siddiqui Bryan C. Nese MAYER BROWN LLP 199 K. Street NW Washington, DC 20006 Tel: 202-263-5282 Robert G. Pluta Nicholas H. Ciulla MAYER BROWN LLP 71 S. Wacker Drive Chicago, IL 60606 Tel: 312-782-0600 Email: Oura-ITC@mayerbrown.com	☐ Via Hand Delivery ☐ Via Overnight Delivery ☐ Via First Class Mail ☐ Via Electronic Filing (EDIS) ☒ Via Electronic Mail

/s/ Brian A. Treggs

Brian A. Treggs
Senior IPT Specialist
O'Melveny & Myers LLP
400 South Hope Street
Los Angeles, CA 90071